

26PR00280 Estate of Ronette Ledune

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-07-21

Motion: Petition for Letters of Administration

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Tentative Ruling: Estate of Ronette Ledune

Case Number

26PR00280

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 07/21/2026 - 21:00

Nature of Proceedings

Petition for Letters of Administration

Tentative Ruling

Probate Notes:

The following must be submitted:

Proof of Publication. No proof of publication was filed. Jurisdiction of the Probate Court is obtained by publication in accordance with Article 3 of Division 7, Part 2, Chapter 2 Probate Code. (Prob. Code, § 8003(b).)

Publication requires the notice to be published in a newspaper adjudicated as a newspaper of general circulation in the city of decedent's residence (Prob. Code, §§ 8121, 7122) and to contain the substantially same language and format shown in Probate Code section 8100. If the city of decedent's residence has no newspaper adjudicated as a newspaper of general circulation, publication must occur "in a newspaper of general circulation in the county which is circulated within the area of

the county in which the decedent resided, or the property is located.” (Prob. Code, §8121(b).)

It is unacceptable to merely file a copy of the newspaper clipping as proof of publication. A Petitioner must obtain an affidavit executed under the penalty of perjury by the person with authority to affect publication at the newspaper. (Prob. Code, §8124.)

PUBLICATION MUST BE IN THE SANTA MARIA TIMES.

Supplement re: Heirs. At paragraph 5(a)(1), Petitioner alleged the Decedent was survived by a spouse, but then contrarily alleged at paragraph 5a(2)(a) that Decedent was divorced or never married. Allegations must be made without creating ambiguity, so supplement must be submitted clarifying the allegation.

Waivers of Bond. There is no bond waiver from a surviving spouse. Bond must be waived by all adult heirs at law. Petitioner must file bond waivers (Form DE-142) for all heirs or devisees named in a will.

Nomination of Administrator. Petitioner does not have priority of administration over Surviving Spouse pursuant to Probate Code section 8461. Please submit a nomination from all those with equal or greater priority. A written declination must be filed by or on behalf of an individual who is entitled to priority for issuance of Letters of administration but does not desire to act, or evidence must be produced that the person with priority is not competent under Probate Code section 8402 or refuses to act. (Local Rule 1752(d)1.)

Supplement re: Probate vs. Spousal Property Petition. The petition requests probate of a Decedent's estate who left a surviving spouse. Petitioner must submit supplement explaining why probate of this estate is favorable over the following procedures:

Spousal or Domestic Partner Property Petition (form DE-221)

Affidavit for Disposition of Community Property Real Estate (Probate Code 13540-13541)

Disposition of Community Property Securities (Probate Code 13545)

Affidavit for Collection of Compensation Owed to Deceased Spouse or Registered Domestic Partner (Probate Code 13600)

If the documents curing these deficiencies are not processed by 8:00 a.m. on July 21, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the “Filing Description” field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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